

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

COURT REPORTERS WILL NO LONGER BE PROVIDED FOR TRIAL AND OTHER HEARINGS WHERE LIVE EVIDENCE WILL BE PRESENTED. IF A PARTY DESIRES A COURT REPORTER FOR ANY HEARING INCLUDING, BUT NOT LIMITED TO, LAW AND MOTION MATTERS, EX PARTE MATTERS AND CASE MANAGEMENT CONFERENCES, IT WILL BE THE RESPONSIBILITY OF THAT PARTY TO PROVIDE ITS OWN COURT REPORTER. PARTIES MUST COMPLY WITH THE COURT'S POLICY ON THE USE OF PRO TEMPORE COURT REPORTERS WHICH CAN BE FOUND ON THE COURT'S WEBSITE AT:

[http://www.occourts.org/media/pdf/7-25-2014 Privately Retained Court Reporter Policy.pdf](http://www.occourts.org/media/pdf/7-25-2014%20Privately%20Retained%20Court%20Reporter%20Policy.pdf)

The Orange County Superior Court has implemented administrative orders, policies, and procedures noted on the Court's website to address the limitations and restrictions presented during the COVID-19 pandemic at Civil Covid-19. Due to the fluid nature of this crisis, you are encouraged to frequently check the Court's website at <https://www.occourts.org> for the most up to date information relating to Civil Operations.

Unless otherwise ordered by the Court, all Unlimited and Complex proceedings may be conducted via Zoom or in person. On the date of your hearing click the Department C20 Link to begin the remote online check in/Zoom appearance process:

<https://occourtsapp.occourts.org/aci/checkin-results?dept=C20>

Date: September 10, 2026

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1.	Nguyen v. Vietship Cargo, Inc. 20-1168653	Before the court is a motion of plaintiff Thuy Nguyen (Plaintiff) to strike and/or tax costs of defendants Vietship Cargo, Inc. and Tai Duc Ta erroneously sued as Ta Duc Tai (collectively, Defendants). As set forth below, the motion is GRANTED IN PART and DENIED IN PART .

Allowable costs "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation" and "reasonable in amount." (*Code Civ. Proc.*, § 1033.5(c)(2)-(3).)

If the items on a verified memorandum of costs appear to be proper charges, the memorandum is *prima facie* evidence of their propriety and the burden is on the party contesting them to show they were not reasonable or necessary. (*Foothill-De Anza Comm. College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29; *Wagner Farms, Inc. v. Modesto Irrigation Dist.* (2006) 145 Cal.App.4th 765, 773-74.) The party challenging costs does not meet this burden by arguing the costs were not necessary or reasonable but must present evidence and prove the costs are not recoverable. (*Seever v. Copley Press, Inc.* (2006) 141 Cal.App.4th 1550, 1557; see also *Wagner Farms, supra*, 145 Cal.App.4th at 777-78.)

If the claimed items are not expressly allowed by statute and are objected to by a motion to strike or tax costs, the burden of proof is on the party claiming them as costs to show the charges were reasonable and necessary. (*Foothill-De Anza Comm. College Dist., supra*, 158 Cal.App.4th at 29.) Whether a cost item was reasonably necessary to the litigation is a question of fact for the court to determine. (*Id.* at 29-30.)

Item 1: Filing and Motion Fees

Filing and motion fees are specifically allowed as costs under Code of Civil Procedure section 1033.5(a)(1). The costs claimed appear to be proper charges. Plaintiff failed to show the costs claimed were not reasonable or necessary.

The motion as to Item 1 is **DENIED**.

Item 10: Attorney Fees

Defendants listed \$34,600 in attorney fees in their memorandum of costs without any supporting documentation, any breakdown of the fees incurred, and without specifically stating the basis for claiming such fees. In the Opposition, Defendants cite *Civil Code section 1717* regarding contractual attorney fee provisions, but Defendants point to no attorney fees provision applicable in the instant matter which would entitle them to claim attorney's fees.

Moreover, attorney's fees allowable as costs by contract or law, "shall be fixed either upon a noticed motion or upon entry of a default judgment, unless otherwise provided by stipulation of the parties." (*Code Civ. Proc.*, § 1033.5(c)(5)(A).) Here, Defendants failed to file any noticed motion seeking attorney fees and the time to file such motion has long passed. (See *Cal. Rules of Ct., rules 3.1702(b)* and *8.104*; ROA 83.)

		Defendants also point to language in the Judgment providing that Defendants are entitled to recover their legal fees and costs incurred in this action. The inclusion of this language in the Judgment was not intended to dispense with the requirement that, to be allowable as costs, fees must be authorized by contract, statute or law. (See <i>Code Civ. Proc.</i>, § 1033.5(a)(10).) The motion as to Item 10 is GRANTED. <i>Items 11 and 12: Court Reporter and Interpreter Fees</i> Plaintiff contends Defendants' request for \$6,422.00 in court reporter fees and \$1,831.00 in interpreter fees should be stricken because, at the outset of trial, the parties agreed on the record to split these costs. Plaintiff offers the declaration of counsel, Timothy L. O'Reilly, who declares "During the course of the trial, the parties orally stipulated, which was put on the record before the court, that the parties have agreed to split the costs of the court reporters and the Vietnamese language interpreters used during the trial." (See O'Reilly Decl., lines 11-13.) The Court's own records confirm the stipulation. The Court's September 9, 2024 Minute Order states "On record, counsel place a stipulation to equally share court reporter and interpreter fees." (See ROA 71.) Defendants offer no evidence demonstrating that, despite the foregoing clear language showing a stipulation to equally share these costs, Defendants intended to reserve their right to later seek allowable costs as the prevailing party. The motion as to Items 11 and 12 is GRANTED. (See <i>Anthony v. Li</i> (2020) 47 Cal.App.5th 816, 824-825 [trial court did not abuse its discretion by taxing court reporter fees as items of costs, where the parties agreed to share the court reporter fees equally, without providing for the later recovery of those shared fees by the prevailing party].) This results in a total cost award to Defendants of \$1,814 (\$44,667 less \$42,853.) <i>Counsel for Plaintiff shall give notice of this ruling.</i>
2.	Boren v. Manly, Stewart & Finaldi 25-1524761	Before the Court are six motions filed by defendants Manly, Finaldi and Stewart (MSF) and John Manly (Manly). The two demurrers to plaintiff Taylor Boren's (Boren) complaint are SUSTAINED as to the 2nd and 3rd causes of action, with 14 days leave to amend, and OVERRULED as to the 4th cause of action. The four are motions for an award of monetary sanctions against Boren pursuant to <i>Code of Civil Procedure</i> §§128.5 and 128.7 are DENIED. Demurrers By MSF and Manly as to 2nd and 3rd Causes of Action